

BEFORE THE IOWA BOARD OF SOCIAL WORK

Re:	)	CASE NO. 14-0276
Social Work Independent Level License of	)	
	)	
BARBARA GOBEL	)	COMBINED STATEMENT OF
License No. 00885	)	CHARGES, SETTLEMENT
Respondent.	)	AGREEMENT, AND FINAL ORDER

COMES NOW the Iowa Board of Social Work ("Board") and Barbara Gobel ("Respondent"), 906 E 5th St., Fremont, NE 68025, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order ("Order") pursuant to Iowa Code sections 17A.10 and 272C.3(4) (2015), and 645 IAC 12, stating the following:

A. STATEMENT OF CHARGES

Count I

Respondent is charged with engaging in a professional conflict of interest with a client in violation of 645 IAC 282.2(8)"b"(2), (4), pursuant to Iowa Code sections 147.55(3), (9), and 645 IAC 283.2(12), (29)"d".

B. FACTUAL CIRCUMSTANCES

1. Respondent's license number 00885 to practice social work at the independent level is currently active, and will expire after December 31, 2016.
2. Respondent provided therapy to client #1 from September 2013 through September 2014.
3. On more than one occasion, Respondent provided therapy to client #1 in client #1's home. Respondent does not generally see other clients in their homes.
4. Respondent gave client #1 a stroller.
5. Respondent offered to transport client #1 to alternative housing.
6. Respondent and client #1 called and texted each other between therapy sessions.
7. Respondent threatened client #1 via text message that she would contact client #1's probation officer if appointments were not kept.
8. Client #1 terminated the therapeutic relationship with Respondent due to blurred boundaries.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

1. The Board has jurisdiction over the parties and the subject matter of these proceedings.
2. Respondent admits the allegations supporting the Statement of Charges and acknowledges that the allegations, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.
3. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
4. Respondent acknowledges that she has the right to be represented by counsel on this matter.
5. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.
6. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.
7. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
8. This Order shall not be binding as to any new complaints received by the Board.
9. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.
10. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.
11. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

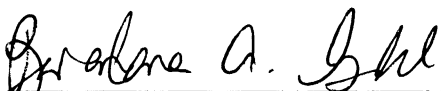
12. Respondent is hereby **CITED** for engaging in a professional conflict of interest with a client, and **WARNED** that Respondent's failure to comply with the laws governing the practice of social work in Iowa in the future could result in further discipline against Respondent's Iowa social work license, including suspension or revocation.

13. Respondent's license shall be placed on **PROBATION** for a minimum period of one (1) year, subject to the following terms and conditions:

- a. Respondent shall complete one (1) year of monitored practice before being released from probation. Prior to beginning practice monitoring, Respondent shall submit a proposed practice monitor and practice monitoring plan to the Board for approval. The proposed practice monitor shall be an Iowa licensed independent social worker. Practice monitoring shall commence upon Board approval of the monitor and the plan. Respondent shall provide the practice monitor with a copy of the Combined Statement of Charges, Settlement Agreement, and Final Order. Respondent's practice monitor shall perform an initial review of Respondent's practice with the goal of identifying potential areas for improvement. After the initial review meeting, Respondent shall meet in a face-to-face setting with the practice monitor on a monthly basis during the probation period to review and discuss the following: areas for improvement, Board rules, hypothetical ethical issues, and ethical issues that may arise in Respondent's practice. A minimum of twelve meetings in addition to the initial review meeting is required. Respondent's practice monitor shall submit quarterly reports to the Board describing the dates of meetings held with Respondent, a summary of the discussion held at each meeting, the practice monitor's recommendations for further mentoring and monitoring, if any, and any other information the practice monitor deems relevant for the Board's review. Said quarterly reports are due on January 5, April 5, July 5, and October 5 of each calendar year during the probationary period. Respondent is responsible for all costs associated with practice monitoring.
- b. Respondent shall complete nine (9) hours of continuing education in the areas of conflicts of interest, professional boundaries, ethics, or in treating clients with addictions. Respondent shall submit certificates to the Board as proof of completion of this requirement. These hours are in addition to the standard continuing education requirements for license renewal and cannot be used to satisfy the required hours or ethics requirement for license renewal. Respondent is responsible for all costs associated with obtaining the required continuing education. Respondent may use any continuing education hours obtained after the commencement of this contested case to satisfy this requirement.
- c. Respondent shall obey all federal and state statutes and regulations governing the practice of social work.
- d. Respondent shall submit quarterly reports to the Board describing her compliance with these probationary terms and conditions. Said quarterly reports are due on January 5, April 5, July 5, and October 5 of each calendar year during the probationary period.

14. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154C, and 272C and 645 IAC 13 and 283.

This Combined Statement of Charges, Settlement Agreement, and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 20th day of August, 2015.



BARBARA GOBEL
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Social Work on the 9 day of November, 2015.



Chairperson
Iowa Board of Social Work

Copy to:

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